

7.	PC20210448	THOMAS STUART VS DAVID CORDANO
MOTION TO STRIKE/TAX COSTS		

On June 30, 2026, Plaintiffs, Thomas Stuart and Teresa Stuart (collectively "Plaintiffs"), filed a Memorandum of Costs. Defendants, David Cordano and Jeanne Cordano (collectively "Defendants"), filed a Motion to Strike or, in the alternative, to Tax Costs and a Request for Judicial Notice on July 14, 2026.

An Amended Memorandum of Costs and Declaration of Nicholas S. Seliger in Support of Plaintiffs' Amended Memorandum of Costs were filed by Plaintiffs on July 30, 2026. Plaintiffs' Amended Memorandum of Costs requests a total amount of \$42,117.24, as follows: 1) \$545.00 for filing and motion fees; 2) \$155.00 for jury fees; 3) \$956.00 for deposition costs; 4) \$943.03 for service of process; 5) \$804.45 for court-ordered transcripts; 6) \$1,710.63 for fees for electronic filing or service; and 7) \$37,003.13 for "other" costs.

Defendants filed a Declaration and Memorandum of Points and Authorities in Support of Response to Amended Memorandum of Costs and Supplemental to Motion of Defendants to Strike or, in the alternative, to Tax Costs on August 17, 2026. No opposition has been filed.

Request for Judicial Notice

Defendants seek judicial notice of a Motion for Determination of Good Faith Settlement filed in this Court on August 18, 2025.

Judicial notice is a mechanism which allows the Court to take into consideration matters which are presumed to be indisputably true. California Evidence Code Sections 451, 452, and 453 govern the circumstances in which judicial notice of a matter may be taken. While Section 451 provides a comprehensive list of matters that must be judicially noticed, Section 452 sets forth matters which *may* be judicially noticed, including, but not limited to, "[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States."

Section 452 provides that the court "may" take judicial notice of the matters listed therein, while Section 453 provides a caveat that the court "shall" take judicial notice of any matter "specified in Section 452 if a party requests it and: (a) Gives each adverse party sufficient notice of the request...to enable such adverse party to prepare to meet the request; and (b) Furnishes the court with sufficient information to enable it to take judicial notice of the matter." Cal. Evid. Code § 453.

While the request made by Defendants fall within the purview of Section 452, matters which *may* be judicially noticed, the Court does find that Defendants provided Plaintiffs and the Court sufficient notice of the request and copies of the documents requested to be noticed. As

such, Defendants have satisfied the requirements of Evidence Code § 453 and the request for judicial notice is granted.

Legal Principles

A prevailing party is entitled to recover its costs. (Code Civ. Proc., § 1032, subd. (b).) Code of Civil Procedure section 1033.5 creates three categories of costs—allowed, prohibited, and discretionary. (*Rozanova v. Uribe* (2021) 68 Cal.App.5th 392, 402 [question presented was which category covered the claimed item].) First, Code of Civil Procedure section 1033.5, subdivision (a) lists the items specifically allowed as recoverable costs. Second, Code of Civil Procedure section 1033.5, subdivision (b) lists items that “are not allowable as costs, except when expressly authorized by law[.]” (*Ibid.*) Third, Code of Civil Procedure section 1033.5, subdivision (c)(4) provides that an item neither specifically allowable under subdivision (a) nor explicitly prohibited under subdivision (b) may be allowed or denied in the discretion of the court if certain requirements are satisfied. (*Id.*, subd. (c)(4).) In particular, the item must be (1) “incurred, whether or not paid;” (2) “reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation;” and (3) “reasonable in amount.” (*Id.*, subd. (c).)

“ ‘In ruling upon a motion to tax costs, the trial court’s first determination is whether the statute expressly allows the particular item and whether it appears proper on its face. “If so, the burden is on the objecting party to show [the costs] to be unnecessary or unreasonable.” [Citation.] Where costs are not expressly allowed by the statute, the burden is on the party claiming the costs to show that the charges were reasonable and necessary.’ ” (*Rozanova, supra*, 68 Cal.App.5th at p. 399; see *Berkeley Cement, Inc. v. Regents of University of Cal.* (2019) 30 Cal.App.5th 1133, 1139.)

Discussion

Defendants contend that the Motion for Determination of Good Faith Settlement establishes that nine other defendants/cross-defendants reached settlements prior to the Trial of David and Jeanne Cordano. Plaintiffs did not provide an itemization of costs that was necessary for litigating this matter solely against Defendants. As sufficient information has not been provided to determine reasonableness or whether the costs are permitted by statute, Defendants request the Court tax the following costs: 1) service of process; 2) court-ordered transcripts; 3) fees for electronic filing or service; and 4) “other” costs.

1. Service of Process Costs

Of the \$943.03 claimed, Defendants seek to tax \$543.03 on the grounds that it was not reasonably necessary to the conduct of the litigation against Defendants, and not reasonable in amount.

As Plaintiffs have not filed an opposition, the Court is unable to determine the reasonableness of the service of process costs. Absent proof of the service of process costs attributable to Defendants, Defendants' request to tax is granted.

2. Court-Ordered Transcripts Costs

Defendants seek to tax \$804.45 of the \$804.45 claimed for court-ordered transcripts, as the costs are excluded by statute since the transcripts were not court ordered.

Code of Civil Procedure § 1033.5(a)(9) allows for the costs of transcripts of court proceedings ordered by the court. Alternatively, § 1033.5(b)(5) expressly prohibits costs of transcripts of court proceedings not ordered by the court.

Finding the transcripts were not court-ordered, Defendants' request to tax the costs for court-ordered transcripts in the amount of \$804.45 is granted.

3. Electronic Filing or Service Costs

Defendant requests the court tax the entirety of the \$1,710.63 in fees for electronic filing or service on the grounds that it was not reasonably necessary to the conduct of the litigation and not reasonable in amount. Without an itemization, Defendants are unable to discern what amounts are attributable to litigation against them.

Plaintiffs contend that one hundred percent of the fees are attributable to the costs incurred filing and electronically serving documents pertaining to the instant litigation. However, no opposition was filed which identified which costs were attributable to Defendants.

Absent proof the electronic filing or service costs are attributable specifically to Defendants, Defendants' request to tax the costs for electronic filing or service costs is granted.

4. "Other" Costs

Defendants request the court tax the entirety of the \$37,003.13 "other" costs on the basis that it was not reasonably necessary to the conduct of the litigation and not reasonable in amount.

Plaintiffs assert the "other" costs are comprised of: 1) \$5,313.75 in expert fees incurred by Plaintiffs' general construction expert Geoff Laurin and Laurin Construction; 2) \$26,199.38 in expert fees incurred by Plaintiffs' expert Steve Sert and Sert Consulting, Inc.; and 3) \$5,490 in fees representing the fees paid by Plaintiffs for Court-appointed Special Master, Peter Dekker of Castle, Dekker & Bellagamba which represents Plaintiffs' allocation of fees paid for his work as Special Master and Mediator.

Defendants further contend that they did not participate in the Special Master proceedings, the mediation process, or any depositions other than their own. Per the Ruling on Submitted Matter, the only expert to testify was Laurin, Plaintiffs' expert.

Code of Civil Procedure § 1033.5(a)(8) allows for the fees of expert witnesses ordered by the Court. Conversely, § 1033.5(b)(1) expressly provides that fees of experts not ordered by the court are not allowable, except when expressly authorized by law.

Absent evidence that Plaintiff's general construction expert Goeff Laurin and Laurin Construction and Plaintiffs' expert Steve Sert and Sert Consulting, Inc. were ordered by the Court or expressly authorized by law, Plaintiffs are not entitled to recover their expert witness fees.

A special master having been appointed by the court, his or her fee is analogous to the award of "[f]ees of expert witnesses ordered by the court." (§ 1033.5, subd. (a)(8); see *Estrin v. Fromsky* (1942) 53 Cal.App.2d 253, 255, 127 P.2d 603.) The expense of court-appointed experts is first apportioned and charged to the parties, and then the prevailing party's share is allowed as an item of costs. (See *City of Los Angeles v. City of San Fernando* (1975) 14 Cal.3d 199, 297, fn. 104, 123 Cal.Rptr. 1, 537 P.2d 1250.) *Winston Square Homeowner's Assn. v. Centex West, Inc.* (1989) 213 Cal.App.3d 282, 293 [261 Cal.Rptr. 605, 611].

A trial court does not abuse its discretion when it allocates court-appointed expert costs to other parties. *Baker-Hoey v. Lockheed Martin Corp.* (2003) 111 Cal.App.4th 592, 605 [3 Cal.Rptr.3d 593, 603] (finding it was reasonable to allocate the expenses of the discovery referee equally among the eight defeated plaintiffs).

The Court finds the costs for the Special Master fees are not reasonable, as Defendants were one of ten total defendants/cross-defendants. The Court equally allocates the \$5,490.00 among all defendants/cross-defendants in the amount of \$549.00. The Court grants Defendants' request to tax \$36,454.13 of "other" costs.

TENTATIVE RULING #7:

DEFENDANTS' MOTION TO TAX IS GRANTED AS REQUESTED FOR SERVICE OF PROCESS COSTS, COURT-ORDERED TRANSCRIPTS COSTS AND ELECTRONIC FILING OR SERVICE COSTS. DEFENDANTS' MOTION TO TAX IS GRANTED IN THE AMOUNT OF \$36,454.13 FOR "OTHER" COSTS.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.